

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CANDIDA APELLANIZ, INDIVIDUALLY AND AS M/N/G FOR WP1,
WP2, AND WP3 (INFANTS LESS THAN EIGHTEEN YEARS OF
AGE) ; AND YEIDRI PAREDES

PLAINTIFFS,

vs.

CITY OF NEW YORK AND POLICE OFFICER, ROBERTO
GUTIERREZ, SHIELD NO. 4950

DEFENDANTS

SUMMONS

Plaintiffs designate Bronx County as
the place of trial.

The basis of venue is:
Plaintiff's address:
170 W Kingsbridge Road
Bronx, NY 10463

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 15, 2016

STEVEN ADAM RUBIN & ASSOCIATES, PLLC
STEVEN ADAM RUBIN
Attorneys for Plaintiff
71 West 23 Street, Suite 1623
New York, New York 10010
212-643-5402

TO: Zachary Carter, Esq.
CORPORATION COUNSEL
Attorneys for CITY OF NEW YORK and The New York City Police Department
100 Church Street
New York, New York 10007

Police Officer Roberto Gutierrez
Shield No.: 4950
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CANDIDA APELLANIZ, INDIVIDUALLY AND AS M/N/G
FOR WP1, WP2, AND WP3 (INFANTS LESS THAN
EIGHTEEN YEARS OF AGE) ; AND YEIDRI PAREDES
PLAINTIFFS,

Index No.:
Date Purchased:

VERIFIED COMPLAINT

vs.

CITY OF NEW YORK AND POLICE OFFICER,
ROBERTO GUTIERREZ, SHIELD NO. 4950,
DEFENDANTS
-----X

Plaintiffs, by their attorneys Steven Adam Rubin & Associates, PLLC for their complaint herein,
upon information and belief, respectfully alleges:

1. At all times hereinafter mentioned, plaintiff CANDIDA APELLANIZ was and is
a natural person residing in the County of Bronx, City and State of New York.
2. At all times hereinafter mentioned, plaintiff CANDIDA APELLANIZ was and
is mother and natural guardian of infant plaintiffs WP1, WP2, AND WP3,
children less than 18 years of age, and all residents of the County of Bronx.
3. At all times hereinafter mentioned, plaintiff YEIDRI PAREDES was and is a
natural person residing in the Dominican Republic.
4. When Plaintiff YEIDRA PARADES was present in the United States, she
resided in the home of Plaintiff CANDIDA APELLANIZ, and had an
expectation and right of privacy as such.
5. Upon information and belief, defendant THE CITY OF NEW YORK was and

1 still is a municipal corporation, duly organized and existing under and by virtue
2 of the laws of the State of New York.

3 6. Upon information and belief, at all times hereinafter mentioned, defendant the
4 CITY OF NEW YORK, by its agents, servants and/or employees operated and
5 maintained a police force known as the NEW YORK CITY POLICE
6 DEPARTMENT, the headquarters of which are located at One Police Plaza, New
7 York, New York.

8 7. That plaintiffs have complied with all the conditions precedent to the bringing of
9 this action, and within ninety (90) days after the date of the occurrence
10 hereinafter set forth, plaintiffs duly served written notices of claim upon the
11 Comptroller of the CITY OF NEW YORK, pursuant to law, on October 14,
12 2015, said notices being verified by oath of plaintiffs and/or Plaintiffs'
13 representative and attorney.
14

15 8. That hearings, pursuant to General Municipal Law Section 50-H were held of all
16 plaintiffs and infant-Plaintiffs on January 29, 2016, pursuant to notice of the City of New
17 York Comptroller's Office.

18 9. That this action is brought within one year after the said occurrence and that more
19 than thirty days have elapsed since service of such notices of claim and said claims
20 remain unadjusted and defendants refuse to make any adjustment of same.

21 10. At all times hereinafter stated, defendants failed to remedy same as required by
22 Section 394a-1.0 of the Administrative Code of the City of New York
23 (subsequently renumbered Section 7-201).

24 11. That on or about September 15, 2015 at approximately 9:30 PM at 212 West
25 Kingbridge Road Apt. 5D, in the County of Bronx, State of New York infant

1 plaintiffs WP1, WP2 and W3 and plaintiffs CANDIDA APELLANIZ and
2 YEIDRI PAREDES were lawfully inside the aforementioned premises, their
3 home.

4 12. That on or about September 15, 2015, infant plaintiffs and Plaintiffs were lawfully
5 inside the aforementioned premises when Defendant The City of New York, their
6 servants, agents and employees, specifically members of the New York City Police
7 Department, including Defendant PO ROBERTO GUTIERREZ, Shield No. 4950,
8 and other John Doe Police Officers (Said identities of said Police Officers being
9 unknown, it thereby intended to identify same) entered the home of Plaintiffs
10 without their permission, authority or consent; without probable cause; without a
11 search warrant, or any legal reason or justification, in violation of the New York
12 State and United States Constitutions.

13 **FIRST CAUSE OF ACTION**

14 13. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs
15 with the same force and effect as if more fully set forth herein.

16 14. That on September 15, 2015, Defendants the CITY OF NEW YORK and its employees, agents and/or
17 servants, specifically defendant POLICE OFFICER ROBERTO GUTIERREZ, SHIELD NO. 4950 AND
18 NEW YORK CITY POLICE OFFICERS "JOHN DOES" SAID POLICE OFFICERS TRUE NAMES
19 BEING UNKNOWN TO PLAINTIFFS, IT BEING THEREBY INTENDED TO DESIGNATE THOSE
20 POLICE OFFICERS, unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly, recklessly,
21 and without probable cause, reason or justification, detained plaintiff s.

22 15. That the aforesaid arrest and/or confinement and detention of plaintiffs was caused solely and wholly
23 through and by reason of the culpable acts and conduct of the defendants their agents, servants and/or
24 employees acting under their employment and within the scope of their authority without any warrant or
25 other legal process and without authority of the law and without any reasonable cause or belief that the

1 plaintiffs had committed any crime and with no culpable conduct on the part of the plaintiff contributing
2 thereto.

3 16. That by reason of the aforesaid, the plaintiffs were confined for a period of approximately twenty
4 minutes.

5 17. That the plaintiff s were conscious of this confinement.

6 18. That the plaintiffs did not consent to this confinement.

7 19. The confinement of the plaintiffs by members/employees of defendant CITY OF NEW YORK and its
8 employees, agents and/or servants was not privileged.

9 20. That by reason of the false arrest, false imprisonment and detention of the plaintiffs, plaintiffs were
10 denied their liberty, and caused to sustain serious, severe and painful mental injuries together with
11 humiliation, ridicule, degradation of their good character and damage to their good name, and they
12 became incapacitated and were unable to attend to their usual duties.

13 21. This action falls within one or more of the exemptions set forth in CPLR §1602.

14 22. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

15 **SECOND CAUSE OF ACTION**

16 23. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the above paragraphs
17 with the same force and effect as if more fully set forth at length herein.

18 24. Defendant CITY OF NEW YORK, its agents, servants and/or employees, acting within the scope of
19 their employment did negligently hire, retain, train and supervise Individuals who were unfit for the
20 performance of police duties on September 15, 2015 including, but not limited to defendant POLICE
21 OFFICER ROBERTO GUTIERREZ, SHIELD NO. 4950 AND NEW YORK CITY POLICE OFFICERS
22 "JOHN DOES" SAID POLICE OFFICERS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT
23 BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS.

24 25. That by reason of the aforesaid, the plaintiffs' sustained severe and permanent personal injuries and
25 damages.

1 26. This action falls within one or more of the exemptions set forth in CPLR §1602.

2 27. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

3 **THIRD CAUSE OF ACTION**

4 28. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the above paragraphs
5 with the same force and effect as if more fully set forth at length herein. .

6 29. That on September 15, 2015, defendant POLICE OFFICER ROBERTO GUTIERREZ, SHIELD NO.
7 4950 AND NEW YORK CITY POLICE OFFICERS "JOHN DOES" SAID POLICE OFFICERS TRUE
8 NAMES BEING UNKNOWN TO PLAINTIFFS, IT BEING THEREBY INTENDED TO DESIGNATE
9 THOSE POLICE OFFICERS, entered the home of Plaintiffs without probable cause; a search warrant,
10 or any justifiable or lawful reason, in violation of the New York State and US Constitutions.

11 30. Defendants, their servants, agents employees and co-employees thereafter detained Plaintiffs and did
12 not permit them the liberty to move about their home or leave.

13 31. That Plaintiffs were unlawfully detained and falsely imprisoned for a period of approximately twenty (20)
14 minutes.

15 32. That said defendant POLICE OFFICER ROBERTO GUTIERREZ, SHIELD NO. 4950 AND NEW
16 YORK CITY POLICE OFFICERS "JOHN DOES" SAID POLICE OFFICERS TRUE NAMES BEING
17 UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE
18 OFFICERS, , having the real apparent ability to cause imminent harmful and offensive bodily contact
19 and the power and authority to arrest and detain the plaintiffs, did so.

20 33. That the act of entering Plaintiffs' home without their consent and their subsequent detention, false
21 arrest and false imprisonment violated their rights and liberties as set forth in the Constitutions of the
22 United States and of the State of New York, without any conduct on the part of plaintiff to so warrant to
23 wit:

- 24 a. In that all of the actions of the defendants, their agents, servants and employees, were
25 committed with the intention to cause bodily and mental injury to the plaintiffs, to arrest,
restrain and imprison the plaintiffs without their consent, the plaintiffs were at all times

conscious of their confinement and detention, did not consent , and said actions were not otherwise privileged; and

- b. The arrest, imprisonment and detention was not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under color of statute, ordinances, regulations, customs and usages of the State and City of New York, County of Bronx, and under the authority of their office as police officers for said County.
- c. That the defendant(s), its agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public including plaintiffs; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants; and
- d. The failure of the defendants, its agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the state of New York and The City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to the citizens of the State and City of New York including plaintiffs; and
- e. Due to the acts of the defendants, it agents, servants and employees herein to discipline and properly hire the defendants and the continued employment of the defendants, agents, servants and employees presents a clear and present danger to the citizens of the City and State of New York, County of Bronx; and
- f. That the said arrest/imprisonment/detention of plaintiff s was procured by the defendants, their agents, servants and employees in this action unlawfully. That the commencement

and/or continuation of plaintiff's detention by the defendants was without probable cause and with actual malice; and

g. That the defendants, its agents, servants and employees permitted the use of policy and/or drafted policy that was violative of the Constitutional rights of plaintiff; and in that each all of the acts of the defendants, their agents, servants and employees alleged herein, were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and County of New York,, and under the authority of their office as police officers.

34. Defendants did not have probable cause to arrest/confine/detain plaintiffs, nor to enter their home; and said act deprived plaintiffs of their Constitutional rights as set forth in the Constitution of the United States and the Constitution of the State of New York.

35. As a direct result of the illegal actions and conduct on the part of the defendants, their agents, servants and employees, plaintiffs was illegally detained, and falsely imprisoned.

36. That at all time hereinafter mentioned, defendants, their agents, servants and/or employees, specifically members of the New York City Police Department were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York and State of New York.

37. Said agents, servants and/or employees, specifically members of the New York City Police Department acting under the color of law, have subjected plaintiff s and other persons to a pattern of conduct consisting o illegally entering their homes and thereafter illegally detaining said Plaintiffs and individuals, in denial of rights, privileges and immunities guaranteed plaintiffs and others by the Constitution of the United States and the State of New York.

38. This systemic pattern of conduct consists of a large number of false arrest and false imprisonment , negligence and illegal entry into their home, visited upon plaintiffs, and other citizens by defendants and under color of law, and while carried out under color of law, have no justification or excuse in law

1 and are instead illegal, improper and unrelated to any activity in which police officers may appropriately
2 and legally engage in the course of protecting persons or property or ensuring civil order.

3 39. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
4 including but not limited to policies and customs concerning the investigative procedures conducted
5 before the entry into individuals' homes and the hiring, training, supervision, retention and discipline of
6 the CITY OF NEW YORK, its agents, servants and/or employees who are responsible of conducting
7 said investigative tasks.

8 40. That defendant the CITY OF NEW YORK encouraged, approved, and/or tolerated the use of
9 misconduct involving illegal entry of civilians' homes and apartments.

10 41. This systemic pattern of conduct consists of the illegal entry visited upon plaintiffs and other citizens by
11 defendants and under color of law, and while carried out under color of law, have no justification or
12 excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may
13 appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

14 42. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom-
15 including but not limited to policies and customs concerning the entry into civilians' homes and
16 apartments, and the detection and apprehension of fugitives and subjects and arrest; and the official or
17 unofficial custom or policy of detaining of civilians , and the hiring, training, supervision, retention and
18 discipline of the CITY OF NEW YORK, its agents, servants and/or employees who take part in this
19 conduct. .

20 43. That defendant the CITY OF NEW YORK encouraged, approved, and/or tolerated the illegal entry into
21 citizens and civilians homes and apartments.

22 44. That defendant the CITY OF NEW YORK encourage, approve and/or tolerate attempts by the police
23 officers and the New York City Police Department to conceal misconduct.

24 45. Although defendants, their agents, servants and/or employees knew or should have known the fact that
25 the aforementioned patterns of conduct are carried out by their agents, servants or employees, said
defendants have not taken any steps or made any efforts to halt this course of conduct, to make

redress to the plaintiff or other citizen injured thereby, or to take any disciplinary action whatever.
against any of their agents, servants or employees.

46. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of
them, deprived plaintiff s of the following rights, privileges and immunities secured to them by the
Constitutions of the United States and the State of New York:

- a. The right of plaintiffs to be secure in their home
- b. The right of plaintiffs to be secure of their person
- c. The right of plaintiffs not to be deprived of life, liberty or property without due process of
law.
- d. The right of equal protection under the laws of United States of America.

47. That by reason of the aforesaid violations, false arrest and false imprisonment, and illegal entry into
their home by the defendants, their agents, servants and employees who conspired together to wrongly
deprive plaintiffs of their rights and privileges as provided to them in the Constitution of the United
States and the New York State Constitution, plaintiffs were deprived of their liberty, and were
subjected to and caused to suffer great pain, indignity, humiliation, and great distress of mind and body
and was held up to scorn and ridicule, was injured in their character and reputation, were prevented
from attending their usual business and avocation, and the said plaintiffs have been otherwise
damaged.

48. This action falls within one or more of the exemptions set forth in CPLR §1602.

49. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in an
amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the
costs and disbursements of this action.

1
2 Dated: New York, New York
February 15, 2016

3 Yours etc.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC

4 BY: STEVEN ADAM RUBIN, ESQ.
5 ATTORNEYS FOR PLAINTIFFS
6 71 West 23 Street, Suite 1623
New York, NY 10010
212-643-5402

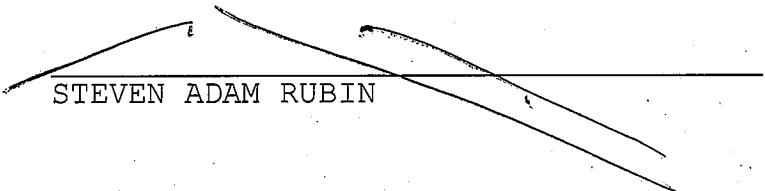
ATTORNEY'S VERIFICATION

STEVEN ADAM RUBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at STEVEN ADAM RUBIN & ASSOCIATES, PLLC, attorneys of record for Plaintiffs, CANDIDA APELLANIZ, WP1, WP2, WP3 (INFANTS LESS THAN 18 YEARS OF AGE) and YEIDRI PAREDES. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: New York, New York
February 19, 2016


STEVEN ADAM RUBIN

Index No:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CANDIDA APELLANIZ, INDIVIDUALLY AND AS M/N/G FOR WP1, WP2, AND WP3 (INFANTS
LESS THAN EIGHTEEN YEARS OF AGE); AND YEIDRI PAREDES,

Plaintiffs,

vs.

CITY OF NEW YORK AND POLICE OFFICER ROBERTO GUTIERREZ, SHIELD NO.: 4950
Defendants

LAW OFFICE OF
STEVEN ADAM RUBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
CANDIDA APELLANIZ, ET AL
71 West 23rd Street, Suite 1623
New York, NY 10010
(212) 643-5402

ATTORNEY'S CERTIFICATION

STATE OF NEW YORK COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, does hereby certify, pursuant to 22NYCRR 130-1.1 certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: February 19, 2016

NOTICE OF ENTRY OR SETTLEMENT

PLEASE TAKE NOTICE than an order

NOTICE OF ENTRY

of which the within is a (true) (certified) copy of a
within named court on 2016.

duly entered in the office of the clerk of the

NOTICE OF SETTLEMENT

will be presented for settlement to the Hon.
Court, at on 2016

One of the judges of the within named

at o'clock M.

Dated: February 19, 2016

Yours etc.,

STEVEN ADAM RUBIN, ESQ.